

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Mark A. McCannon
1050 Mission Road, South San Francisco, CA 94080
Department 2, Courtroom K
Thursday 8/13/2026 at 2:00 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept2@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5102 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

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Meeting ID: 160 135 4419

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TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case

Title / Nature of Case

2:00 PM

LINE: 1

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

MICHAEL A. KELLY
STEPHANIE L QUINN

PLAINTIFF WILLIAM ROGERS' MOTION TO SEVER DEFENDANT'S CROSS COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Plaintiff's Motion for a Separate Trial of the Cross-Complaint filed by Defendants TransitAmerica Services, Inc., Herzog Transit Services, Inc., and Peninsula Corridor Joint Powers Board against Cross-Defendant Balfour Beatty Infrastructure, Inc., pursuant to Code of Civil Procedure section 1048, subdivision (b), is **GRANTED IN PART**.

BACKGROUND

On August 25, 2022, Plaintiff William Rogers, an employee of Modern Railway Systems ("MRS"), was working on Caltrain property when he fell through timber planking on the Oregon Expressway Bridge onto Oregon Expressway below. This action, filed on July 20, 2023, arises from the injuries Rogers allegedly sustained in that accident.

The Complaint asserts three causes of action: (1) dangerous condition of public property; (2) negligence; and (3) loss of consortium against Defendants TransitAmerica Services, Inc., Herzog Transit Services, Inc., Peninsula Corridor Joint Powers Board ("JPB"), San Mateo County Transit District, and Does 1 through 125.

On October 9, 2025, the Court granted Defendants leave to file a Cross-Complaint against Balfour Beatty Infrastructure, Inc. ("BBI"). Caltrain had contracted with BBI in connection with the project to modernize Caltrain passenger rail service. BBI subcontracted with MRS to perform signalization work. MRS is a subsidiary of SWI, which also allegedly provided services in connection with the project.

The Cross-Complaint asserts eight causes of action against BBI and Roe Cross-Defendants: (1) breach of contractual duty to defend; (2) declaratory relief regarding the duty to indemnify; (3) negligence; (4) breach of contract; (5) implied indemnity; (6) comparative equitable indemnity; (7) contribution; and (8) declaratory relief.

Plaintiffs move for a separate trial of the Complaint and Cross-Complaint pursuant to Code of Civil Procedure section 1048, subdivision (b), arguing that separate trials would promote expedition and economy, further the convenience of the parties, and avoid prejudice because the Complaint and Cross-Complaint raise materially different issues.

Defendants oppose. They contend that the central factual question common to both pleadings is who, if anyone, was responsible for the condition of the Oregon Expressway Bridge that allegedly caused Rogers's accident. Defendants propose that the Fourth Cause of Action for breach of contract, insofar as it concerns BBI's insurance-related contractual obligations, be tried after the underlying liability issues, while the negligence, equitable-indemnity, contribution, and related claims remain with the underlying action because they arise from the same accident and depend upon substantially overlapping evidence.

LEGAL STANDARD

Code of Civil Procedure section 1048, subdivision (b), provides that, in furtherance of convenience, to avoid prejudice, or when separate trials will promote expedition and economy, the Court may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or number of causes of action or issues.

Code of Civil Procedure section 598 similarly authorizes the Court, when the convenience of witnesses, the ends of justice, or the economy and efficiency of the litigation would be promoted, to order that the trial of one issue or part of an issue precede the trial of another.

"A trial court has discretion to determine the order in which claims or issues are bifurcated and determined, and the selection and scheduling of those phased determinations will not be disturbed absent an abuse of that discretion." (*Antelope Valley Groundwater Cases* (2020) 59 Cal.App.5th 241, 273.)

Although litigants and courts sometimes use the term "severance" in this context, Code of Civil Procedure section 1048 no longer authorizes severance of a civil action into separate actions; rather, it authorizes the Court to order separate trials of causes of action or issues within the same action. (*Morehart v. County of Santa Barbara* (1994) 7 Cal.4th 725, 738, fn. 3.)

DISCUSSION

Both sides discuss *Omaha Indemnity Co. v. Superior Court* (1989) 209 Cal.App.3d 1266. There, plaintiffs simultaneously sued alleged tortfeasors for negligence and the tortfeasors' insurer for declaratory relief concerning insurance coverage. The Court of Appeal held that the trial court abused its discretion by refusing to order a separate trial of the insurance-related declaratory-relief claim because trying the insurer and the insured together would inject evidence of liability insurance into the negligence trial in a manner inconsistent with Evidence Code section 1155. (*Id.* at pp. 1270–1271.)

Omaha does not require complete separation of the Complaint and Cross-Complaint here. No insurer is a party to this action, and no bad-faith claim against an insurer is alleged. Moreover, Evidence Code section 1155 does not categorically prohibit all evidence concerning insurance; it provides that evidence of liability insurance is inadmissible when offered to prove negligence or other wrongdoing.

Nevertheless, *Omaha* illustrates the prejudice that may arise when insurance-coverage issues are unnecessarily placed before a jury deciding underlying tort liability. The Court therefore considers whether particular causes of action or issues should be tried separately rather than whether the entire Cross-Complaint should be separated from the underlying action.

Defendants contend that resolution of the principal factual issue presented by both pleadings—who was responsible for the condition of the Oregon Expressway Bridge that allegedly caused Rogers’s injuries—will require substantially the same witnesses, documents, experts, and factual determinations regardless of whether the Complaint and Cross-Complaint are tried together or separately. To that extent, the Court agrees.

Plaintiffs have not demonstrated that two entirely separate trials are necessary to avoid prejudice or would promote judicial economy. Completely separating the Cross-Complaint from the underlying action would likely require duplicative witness and expert testimony, repeated presentation of the same evidence concerning the accident and the condition of the bridge, and potentially inconsistent factual determinations concerning negligence and comparative fault.

Those considerations weigh against separately trying the Third Cause of Action for negligence, the Fifth Cause of Action for implied indemnity, the Sixth Cause of Action for comparative equitable indemnity, and the Seventh Cause of Action for contribution. Those claims substantially overlap with the factual questions concerning negligence, causation, and comparative responsibility presented by Plaintiffs’ Complaint.

The Court reaches a different conclusion as to the **First, Second, and Fourth Causes of Action** of the Cross-Complaint. The First Cause of Action concerns an alleged contractual duty to defend; the Second seeks declaratory relief concerning an alleged contractual duty to indemnify; and the Fourth alleges breach of contract. Those claims raise contractual issues—including the scope and interpretation of BBI’s contractual obligations, insurance-procurement and additional-insured provisions to the extent implicated by the pleadings, tenders of defense, defense costs, and related contractual defense and indemnity obligations—that are materially different from the jury’s determination of the underlying accident, negligence, causation, and comparative fault.

Trying those contractual issues during the underlying liability phase would create a substantial risk of unnecessary jury confusion and the introduction of insurance-related evidence having little or no relevance to the determination of tort liability. Conversely, resolving the underlying liability and comparative-fault issues first may narrow or eliminate issues relevant to the contractual claims.

Accordingly, separate phased proceedings will best promote efficiency and reduce the potential for prejudice without unnecessarily duplicating the evidence concerning the underlying accident.

Plaintiff’s motion is therefore **GRANTED IN PART**.

Pursuant to Code of Civil Procedure sections 1048, subdivision (b), and 598, trial shall proceed as follows:

Phase One: Trial shall proceed on Plaintiffs’ Complaint and on the Third, Fifth, Sixth, and Seventh Causes of Action of the Cross-Complaint, together with any other issues properly dependent upon the determination of negligence, causation, comparative fault, or allocation of responsibility for the underlying accident.

Phase Two: Following completion of Phase One, the Court shall separately try the First Cause of Action for breach of contractual duty to defend, the Second Cause of Action for declaratory relief regarding the duty to indemnify, and the Fourth Cause of Action for breach of contract.

The Court does not presently determine whether any particular issue within the Eighth Cause of Action for declaratory relief belongs in Phase One or Phase Two because the present record does not sufficiently establish

whether each aspect of that claim turns upon comparative fault and equitable indemnity, contractual interpretation, or both. The parties shall address the proper allocation of the Eighth Cause of Action in connection with the pretrial proceedings.

The Court also reserves determination of whether the issues in Phase Two will be tried to the same jury, a different jury, or the Court, as appropriate in light of the issues remaining after Phase One and the parties' respective jury-trial rights. (See Code Civ. Proc., § 598.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare and submit for the Court's signature a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law. The parties are reminded that San Mateo County Superior Court Local Rule 3.403(b)(iv) requires the prevailing party on a tentative ruling to prepare a proposed order **repeating verbatim the tentative ruling**. The proposed order shall be e-filed only; it shall not be emailed or mailed to the Court.

2:00 PM

LINE: 2

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

MICHAEL A. KELLY
STEPHANIE L QUINN

DEFENDANT BALFOUR BEATTY INFRASTRUCTURE, INC.'S DEMURRER TO TRANSITAMERICA SERVICES INC., HERZOG TRANSIT SERVICES, INC. AND PENINSULA CORRIDOR JOINT POWERS BORAD'S CROSS-COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Cross-Defendant Balfour Beatty Infrastructure, Inc.'s ("BBII") Demurrer to the October 7, 2025 Cross-Complaint is **SUSTAINED IN PART and OVERRULED IN PART**.

REQUEST FOR JUDICIAL NOTICE

BBII's Request for Judicial Notice ("RJN") is **GRANTED** as to the existence and filing of the Complaint and Cross-Complaint. (Evid. Code, § 452, subd. (d).) The Court does not take judicial notice of the truth of disputed factual allegations contained in those pleadings.

As to Exhibits 3 through 5—the court-filed declarations of Ashcon Minoiefar, William Motherway, and William Bogdan, together with their attachments—the Court takes judicial notice only of the fact that the documents were filed in this action. The Court does not take judicial notice of the truth of the factual assertions contained in the declarations, incident report, correspondence, photographs, or other attachments, nor does it adopt BBII's characterization or interpretation of those materials.

Although a court may judicially notice the existence of documents contained in a court file, judicial notice of a document does not establish the truth of disputed factual assertions contained within it. (*People v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374–375; see also *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564–1569.) A demurrer tests the legal sufficiency of the pleading and may not be converted into an evidentiary hearing through judicial notice of documents whose truth or proper interpretation is disputed. (*People v. H.A.S. Ins. Brokerage, supra*, at pp. 374–375.)

Accordingly, BBII's RJN as to Exhibits 3 through 5 is **GRANTED only as to the existence and filing of those documents and otherwise DENIED**.

BBII'S DEMURRER TO THE FIFTH THROUGH EIGHTH CAUSES OF ACTION

BBII demurs to the Fifth Cause of Action for implied indemnity, Sixth Cause of Action for comparative equitable indemnity, Seventh Cause of Action for contribution, and Eighth Cause of Action for declaratory

relief on the ground that those claims are precluded by Cross-Complainants' assertion of an express contractual indemnity claim.

The demurrer on this ground is **OVERRULED**.

Parties generally may plead alternative, and even inconsistent, theories of recovery. (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402.) That principle is particularly pertinent here because the scope and applicability of the alleged contractual indemnity provision have not yet been determined.

California recognizes that when parties have expressly contracted concerning indemnity, the agreement controls their indemnity rights **within the scope of the agreement**. (*Rossmoor Sanitation, Inc. v. Pylon, Inc.* (1975) 13 Cal.3d 622, 628; *E. L. White, Inc. v. City of Huntington Beach* (1978) 21 Cal.3d 497, 507–508.) But an express indemnity provision has preemptive effect only within the scope of its operation. Where the contractual indemnity obligation is inapplicable to the particular factual circumstances, equitable indemnity principles may apply. (*E. L. White, Inc., supra*, at pp. 507–508.)

Indeed, *E. L. White* addressed this issue following the sustaining of a demurrer and rejected the contention that the existence of an express indemnity provision necessarily foreclosed an implied indemnity claim where the contractual provision did not apply to the particular loss. (*Id.* at pp. 503–504, 507–510.)

Similarly, *Maryland Casualty Co. v. Bailey & Sons, Inc.* (1995) 35 Cal.App.4th 856 recognizes that an express indemnity provision may preclude equitable indemnity to the extent the contract governs the loss, while permitting equitable indemnity where the contractual provision does not apply. (*Id.* at pp. 873–879.)

At this pleading stage, the Court cannot determine that the contractual indemnity provision necessarily governs all of the circumstances giving rise to the underlying action. Cross-Complainants therefore may plead contractual and equitable theories in the alternative. Whether they may ultimately recover under any particular theory is a separate question not resolved on demurrer.

Accordingly, BBII's demurrer to the Fifth, Sixth, Seventh, and Eighth Causes of Action on this ground is **OVERRULED**.

BBII'S DEMURRER TO THE THIRD CAUSE OF ACTION FOR NEGLIGENCE

BBII contends that Cross-Complainants' negligence claim is barred by the economic loss rule. The Court agrees that the Third Cause of Action, as presently pleaded, fails to state an independent negligence claim.

The economic loss rule generally precludes recovery in negligence for purely economic losses—financial harm unaccompanied by physical injury or property damage to the party asserting the tort claim. (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922; *Aas v. Superior Court* (2000) 24 Cal.4th 627, 635–636.)

Cross-Complainants argue that the economic loss rule does not apply because the underlying action involves both physical injury to Plaintiff William Rogers and alleged physical harm to the Oregon Expressway Bridge. Neither circumstance, as presently alleged, is sufficient to state Cross-Complainants' direct negligence claim.

First, Rogers’s personal injuries are not personal injuries sustained by Cross-Complainants. The Third Cause of Action alleges that BBII’s negligence caused or contributed to the damages and injuries asserted by Plaintiffs in the underlying action and seeks to shift to BBII losses for which Cross-Complainants may be held liable. As pleaded, Cross-Complainants’ resulting injury is financial.

That does not prevent Cross-Complainants from pursuing otherwise viable indemnity theories based on BBII’s alleged responsibility for Rogers’s injuries. It does, however, mean that Rogers’s bodily injury does not itself constitute physical injury sustained by Cross-Complainants for purposes of their separate negligence cause of action.

Second, the Cross-Complaint does not sufficiently allege actual physical damage to property giving rise to compensable damages sought by Cross-Complainants. Paragraph 11 alleges that BBII performed work that “may have compromised or otherwise affected the bridge structure.” Paragraph 32 similarly alleges that BBII performed work that “may have compromised or otherwise affected the bridge structure” and thereby resulted in the damages and injuries alleged by Plaintiffs in the underlying action. (XC, ¶¶ 11, 32.)

Those allegations do not allege that BBII actually caused physical damage to the bridge, identify the physical damage allegedly sustained, or allege that Cross-Complainants incurred damages to repair or remediate physical damage to the bridge. Instead, the pleaded damages are the losses arising from Plaintiffs’ underlying personal-injury claims.

Accordingly, the Third Cause of Action, as presently alleged, seeks economic losses without sufficiently alleging physical injury or property damage sustained by Cross-Complainants and is barred by the economic loss rule. (*Sheen v. Wells Fargo Bank, N.A.*, *supra*, 12 Cal.5th at p. 922; *Aas v. Superior Court*, *supra*, 24 Cal.4th at pp. 635–636.)

BBII’s demurrer to the Third Cause of Action is therefore **SUSTAINED WITH LEAVE TO AMEND**.

STATUTE OF LIMITATIONS

BBII separately argues that any negligence claim based on physical damage to the bridge is barred by the three-year limitations period applicable to injury to real property. (Code Civ. Proc., § 338, subd. (b).)

The Court does not sustain the present Third Cause of Action on this additional ground.

A demurrer based on the statute of limitations may be sustained only where the time bar appears clearly and affirmatively from the face of the pleading and matters properly subject to judicial notice. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42.) If the pleading merely shows that the action might be barred, the issue cannot be resolved on demurrer. (*Ibid.*)

Here, the present Cross-Complaint does not adequately allege a direct property-damage claim in the first instance. Because the Court is granting leave to amend, it is unnecessary to determine the accrual date of a property-damage claim that has not yet been sufficiently alleged.

If Cross-Complainants amend to allege actual physical damage to property and the amended pleading demonstrates on its face that the claim accrued outside the applicable limitations period, Cross-Complainants

must plead any basis for delayed discovery with sufficient facts, including the time and manner of discovery and facts showing why the claim could not reasonably have been discovered earlier despite reasonable diligence. (See *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807–808.)

The Court therefore does not sustain the demurrer on statute-of-limitations grounds at this stage, without prejudice to BBII raising the issue against any amended pleading.

CONTRACTUAL DISPUTE-RESOLUTION PROCEDURE

BBII also contends that the negligence claim is barred because Cross-Complainants failed to comply with the contractual dispute-resolution procedure before filing suit.

This argument does not provide an independent basis for sustaining the demurrer.

The contract attached to the Cross-Complaint provides in GP 15.2 that, except for specified “Ineligible Matters,” disputes between the parties are subject to the contractual dispute-resolution procedure. GP 15.2.4 identifies among the excluded matters “[a]ny claim arising solely in tort” and “[a]ny matters relating to the scope or applicability of indemnification provided under the Contract Documents.” (XC, Ex. 2, CALT 002054, 002056.)

The Third Cause of Action is pleaded as a negligence claim sounding in tort. The face of the attached agreement therefore does not establish that this cause of action was necessarily subject to the contractual dispute-resolution procedure.

Moreover, a demurrer reaches defects appearing on the face of the pleading or from matters properly subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Cross-Complaint does not establish that Cross-Complainants failed to satisfy an applicable contractual dispute-resolution requirement, and disputed factual questions concerning compliance, waiver, or applicability cannot be resolved on demurrer.

Finally, BBII principally seeks a **stay** pending completion of the contractual procedure. Such relief does not establish that the Third Cause of Action fails to state facts sufficient to constitute a cause of action.

Accordingly, the Court does not sustain the demurrer on this ground.

BBII’S CO-INSURED ARGUMENT DOES NOT ESTABLISH A BASIS FOR DEMURRER

BBII further argues that the entire Cross-Complaint is barred because Cross-Complainants and BBII allegedly are insured under the same owner-controlled insurance program (“OCIP”).

The argument does not establish a basis for sustaining the demurrer.

BBII relies principally on *St. Paul Fire & Marine Insurance Co. v. Murray Plumbing & Heating Corp.* (1976) 65 Cal.App.3d 66 and *National Union Fire Insurance Co. v. Engineering-Science, Inc.* (9th Cir. 1989) 884 F.2d 1208. Those decisions concern the anti-subrogation principle restricting an **insurer** from pursuing subrogation

against its own insured or co-insured for a loss covered by the applicable policy. (*St. Paul, supra*, at pp. 74–76; *National Union, supra*, at pp. 1209–1211.)

The Cross-Complaint before the Court is not pleaded as an insurer’s subrogation action. Cross-Complainants themselves assert contractual, indemnity, contribution, negligence, and declaratory-relief claims against BBII. The authorities cited by BBII do not establish, as a categorical rule, that one alleged insured is prohibited from asserting its own contractual or indemnity rights against another alleged insured merely because both may have coverage under a common policy.

More importantly for purposes of this demurrer, BBII’s argument depends upon insurance-policy terms, coverage determinations, and related factual matters that are not established by the face of the Cross-Complaint. As explained in connection with the RJN, the Court may not resolve those disputed factual matters by accepting as true declarations and documentary evidence submitted outside the pleading.

Accordingly, BBII’s co-insured argument does not establish a basis for sustaining the demurrer.

LEAVE TO AMEND

Leave to amend is appropriate where there is a reasonable possibility that a pleading defect can be cured. (*Blank v. Kirwan, supra*, 39 Cal.3d at p. 318.)

Here, Cross-Complainants may potentially be able to allege additional facts concerning physical property damage, the nature of their resulting injury, and the basis for any independent tort duty. The Court therefore grants leave to amend the Third Cause of Action.

DISPOSITION

Cross-Defendant Balfour Beatty Infrastructure, Inc.’s Demurrer is ruled upon as follows:

1. The demurrer to the **Third Cause of Action for negligence** is **SUSTAINED WITH LEAVE TO AMEND**.
2. The demurrer to the **Fifth Cause of Action for implied indemnity** is **OVERRULED**.
3. The demurrer to the **Sixth Cause of Action for comparative equitable indemnity** is **OVERRULED**.
4. The demurrer to the **Seventh Cause of Action for contribution** is **OVERRULED**.
5. The demurrer to the **Eighth Cause of Action for declaratory relief** is **OVERRULED**.
6. BBII’s contention that the Cross-Complaint is barred because Cross-Complainants and BBII allegedly are insured under the same insurance program does not establish grounds for demurrer.
7. BBII’s request for a stay based on the contractual dispute-resolution provisions is **DENIED without prejudice** to any procedurally proper request for such relief.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare and submit for the Court’s signature a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law. The parties are reminded that San Mateo County Superior Court Local Rule 3.403(b)(iv) requires the prevailing party on a tentative ruling to prepare a proposed

order **repeating verbatim the tentative ruling**. The proposed order shall be e-filed only; it shall not be emailed or mailed to the Court.

2:00 PM

LINE: 3

23-CIV-05077

DAWN CALVERT VS. NEWELL'S COCKTAIL LOUNGE

**DAWN CALVERT
NEWELL'S COCKTAIL LOUNGE**

**PRO SE
WILLIAM S. KRONENBERG**

DEFENDANT NEWELL'S COCKTAIL LOUNGE'S MOTION TO COMPEL RESPONSE TO WRITTEN DISCOVERY REQUESTS, SET ONE, AND FOR MONETARY SANCTIONS

TENTATIVE RULING:

The unopposed motion is denied without prejudice for failure to provide proof that the underlying discovery was properly served on plaintiff. The POS indicates the discovery was served on plaintiff electronically. Code of Civil Procedure section 1010.6, subdivision (c)(1) provides that an unrepresented party may consent to receive electronic service by serving notice on all parties and filing the notice with the court or by manifesting consent through electronic means with the court or the court's electronic filing service provider. Defendant has not established that plaintiff consented to electronic service.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare and submit for the Court's signature a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law. The parties are reminded that San Mateo County Superior Court Local Rule 3.403(b)(iv) requires the prevailing party on a tentative ruling to prepare a proposed order **repeating verbatim the tentative ruling**. The proposed order shall be e-filed only; it shall not be emailed or mailed to the Court.

2:00 PM

LINE: 4

23-CIV-05077

DAWN CALVERT VS. NEWELL'S COCKTAIL LOUNGE

**DAWN CALVERT
NEWELL'S COCKTAIL LOUNGE**

**PRO SE
WILLIAM S. KRONENBERG**

**PLAINTIFF DAWN CALVERT'S MOTION TO QUASH OR IN THE ALTERNATIVE, TO MODIFY DEFENDANT'S SUBPOENAS
FOR PRODUCTIONS OF RECORDS**

TENTATIVE RULING:

Parties are to refer to Court's July 16th, 2026 tentative ruling.

2:00 PM

LINE: 5

24-CIV-06313

LEONOR GOMEZ ET AL VS SAN MATEO COUNTY TRANSIT DISTRICT (SAMTRANS")

**LEONOR GOMEZ, GUARDIAN AD LITEM
RAMON MUNIZ**

**MARK A SIGALA
NATALIE GARCIA LASHINSKY**

PETITIONER LEONOR GOMEZ, GUARDIAN AD LITEM’S MOTION FOR TRIAL SETTING PREFERENCE AND FOR TRIAL SETTING

TENTATIVE RULING:

For the reasons stated below, Plaintiff Leonor Gomez’s Motion for Trial Setting Preference and for Trial Setting (the “Motion”) is **GRANTED**.

BACKGROUND

According to the allegations, on or about August 4, 2023, Plaintiff Leonor Gomez (“Plaintiff”) and her adult disabled daughter, Plaintiff Aurelia Gomez, were passengers on a bus operated by Defendant San Mateo County Transit District (“SamTrans”) and/or Defendant TransDev Services, Inc. Defendant Ramon Muniz was operating the bus when it allegedly traveled over a speed bump at excessive speed, causing injuries to Plaintiffs. Aurelia Gomez allegedly witnessed her mother sustain serious injuries and claims resulting emotional distress.

Plaintiff now seeks trial preference under Code of Civil Procedure section 36, subdivision (a), and an order setting trial within 120 days.

GOVERNING LAW

Code of Civil Procedure section 36, subdivision (a), provides:

A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in the action as a whole.

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.

(Code Civ. Proc., § 36, subd. (a).)

Accordingly, once the Court makes the findings required by subdivision (a), preference must be granted; the Court does not balance the competing interests of the parties in determining whether preference should be afforded. (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 535; see also *Swaithes v. Superior Court* (1989) 212 Cal.App.3d 1082, 1085–1086.)

The Legislature has also expressly authorized the required medical showing to be made through counsel. Code of Civil Procedure section 36.5 provides:

An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party.

(Code Civ. Proc., § 36.5.)

Thus, section 36, subdivision (a), does not require a physician's declaration. An attorney declaration based on information and belief concerning the party's medical diagnosis and prognosis may suffice, even when the declaration consists of hearsay and conclusions. (*Fox, supra*, 21 Cal.App.5th at p. 534.)

Nor must the moving party establish that she is likely to die before trial. The statute protects against the risk that declining health or incapacity may prevent an elderly litigant from meaningfully participating in the litigation. (See *id.* at pp. 534–535; *Swaithes, supra*, 212 Cal.App.3d at p. 1085.)

ANALYSIS

Plaintiff Has a Substantial Interest in the Action

Plaintiff is 74 years old. (Sigala Decl., ¶ 4.) She is a named plaintiff seeking recovery for injuries and damages she allegedly sustained in the underlying incident. (Sigala Decl., ¶ 5.)

Plaintiff therefore has a substantial interest in the action as a whole within the meaning of Code of Civil Procedure section 36, subdivision (a)(1).

Plaintiff's Health Warrants Trial Preference

The Court also finds that Plaintiff's health is such that preference is necessary to prevent prejudicing her interest in the litigation. (Code Civ. Proc., § 36, subd. (a)(2).)

The medical materials submitted with the Motion document serious spinal and cervical injuries, continuing pain and physical impairment, and other ongoing medical consequences. (Sigala Decl., ¶ 7 & Exh. 1.) Plaintiff reportedly required almost two months of hospitalization and convalescent care and continues to suffer significant physical limitations. (*Ibid.*)

More importantly for purposes of section 36, Plaintiff's counsel declares under penalty of perjury:

Based on my discussions with my client, my review of her medical records, and my consultation with relevant experts, I am informed and believe that my client suffers from multiple injuries, that her mental

and physical condition is deteriorating, and that she will be unable to meaningfully participate in this lawsuit unless a trial is set within the next 120 days.

(Sigala Decl., ¶ 8.)

Section 36.5 expressly permits the Court to consider an attorney declaration made on information and belief concerning a party's diagnosis and prognosis. The absence of a separate physician declaration therefore does not render Plaintiff's showing insufficient. (*Fox, supra*, 21 Cal.App.5th at p. 534.)

Defendants contend that Plaintiff remains capable of performing various activities of daily living and participating to some extent in aquatic physical therapy. Defendants also rely on an Independent Medical Evaluation ("IME") stating that there is "[n]o diminution of life expectancy secondary to the disability from the 08/04/2023 event." (Opp., 9:16–18; Sigala Decl., Exh. 1.)

The Court is not persuaded that this evidence defeats Plaintiff's showing. Section 36, subdivision (a), does not require proof that Plaintiff is presently incapacitated, unable to perform ordinary activities, or likely to die before trial. The pertinent question is whether Plaintiff's health is such that delaying trial creates a material risk of prejudicing her ability meaningfully to participate in the litigation. (*Fox, supra*, 21 Cal.App.5th at pp. 534–535.)

The evidence before the Court establishes that risk. Counsel's declaration, considered together with the medical materials submitted with the Motion, establishes that Plaintiff has significant continuing medical problems and that her physical and mental condition is deteriorating. The Court therefore finds that Plaintiff's health is such that trial preference is necessary to prevent prejudicing her interest in this litigation. (Code Civ. Proc., § 36, subd. (a)(2).)

Both requirements of Code of Civil Procedure section 36, subdivision (a), are satisfied.

Defendants' Claims of Prejudice Do Not Warrant Denial of Preference

Defendants contend that granting preference will impair their ability to complete discovery and otherwise prepare the matter for trial.

Those concerns do not warrant denial of preference once the Court has made the findings required by section 36, subdivision (a). Upon satisfaction of the statutory requirements, preference is mandatory, and the Court does not balance the qualifying party's right to preference against the opposing parties' interests in additional preparation time. (*Fox, supra*, 21 Cal.App.5th at p. 535; *Swaithes, supra*, 212 Cal.App.3d at pp. 1085–1086.)

Indeed, *Swaithes* explains that the failure to complete discovery or other pretrial matters does not defeat the statutory right of a qualifying litigant to trial preference. (*Swaithes, supra*, at pp. 1085–1086.)

Defendants also request that, if preference is granted, the Court impose a series of conditions concerning discovery, privacy rights, dispositive motions, and the trial date. Defendants identify no authority authorizing the Court to condition Plaintiff's statutory entitlement to preference upon acceptance of those proposed requirements.

The Court therefore declines to impose Defendants' requested conditions. This ruling does not, however, preclude appropriate discovery or case-management orders that are otherwise authorized by law and consistent with the requirements of section 36.

DISPOSITION

Plaintiff Leonor Gomez's Motion for Trial Setting Preference and for Trial Setting is **GRANTED**.

The Court finds that:

1. Plaintiff is over 70 years of age and has a substantial interest in the action as a whole; and
2. Plaintiff's health is such that preference is necessary to prevent prejudicing her interest in the litigation.

(Code Civ. Proc., § 36, subd. (a)(1)–(2).)

Pursuant to Code of Civil Procedure section 36, subdivision (f), trial shall be set within 120 days of the granting of this Motion. Accordingly, trial shall be set no later than **December 11, 2026**.

Defendants' request that the Court impose the additional conditions identified in their opposition is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Plaintiff, as the prevailing party, shall prepare and submit a proposed written order pursuant to California Rules of Court, rule 3.1312, and shall give notice of the Court's ruling pursuant to Code of Civil Procedure section 1019.5.

2:00 PM

LINE: 6

25-CIV-02233

JUAN ALONSO VS. GENERAL MOTORS, LLC.

JUAN ALONSO
GENERAL MOTORS, LLC.

TIONNA CARVALHO
KRISTEN ALLISON

DEFENDANT GENERAL MOTORS, LLC'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

This is a lemon-law action. Defendant General Motors, LLC ("Defendant" or "GM") demurs to each of the five causes of action in Plaintiff's First Amended Complaint ("FAC"): (1) breach of warranty under Civil Code section 1793.2, subdivision (d); (2) breach of warranty under section 1793.2, subdivision (b); (3) breach of warranty under section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability under sections 1791.1, 1794, and 1795.5; and (5) fraudulent inducement by concealment.

Defendant's demurrer is **SUSTAINED WITH LEAVE TO AMEND as to the Fourth Cause of Action and otherwise OVERRULED.**

PRELIMINARY MATTER

Plaintiff filed an opposition on June 5, 2026. On June 8, 2026, the Court continued the hearing on the demurrer to August 13, 2026. Defendant filed its reply on June 10, 2026. On July 30, 2026, Plaintiff filed a second opposition that largely, but not entirely, duplicates the first opposition. The second opposition is not identified as an amended or supplemental opposition, and Plaintiff did not obtain leave of Court to file additional briefing. The Court therefore exercises its discretion to disregard the July 30, 2026 opposition.

BACKGROUND

On or about May 22, 2017, Plaintiff entered into a warranty contract with Defendant concerning a 2017 Chevrolet Colorado manufactured and/or distributed by Defendant. (FAC, ¶ 6.) Plaintiff alleges that he purchased the vehicle from Defendant's authorized retail dealership, Boardwalk Chevrolet. (Id., ¶ 8.)

Plaintiff alleges that defects and nonconformities manifested during the warranty period, including activation of the check-engine light, faulty valves, a faulty engine-cooling thermostat, a malfunctioning door, an unresponsive infotainment display, noises from the vehicle, malfunctioning seatbelts and windshield wipers, transmission and electrical defects, and one or more engine defects capable of causing loss of power, stalling, rough operation, and misfires. Plaintiff alleges that these conditions substantially impaired the vehicle's use, value, or safety. (FAC, ¶¶ 10–16, 22–23, 75.) Plaintiff further alleges that Defendant failed to conform the

vehicle to the applicable express warranty and failed to promptly offer replacement or restitution as required by the Song-Beverly Consumer Warranty Act. (Id., ¶ 25.)

Plaintiff also alleges that Defendant knew of the engine defects through preproduction and postproduction testing, consumer complaints made to Defendant and its dealer network, dealership repair orders, testing conducted in response to complaints, and other internal sources of information exclusively within Defendant's possession, but deliberately concealed and failed to disclose those defects to Plaintiff. (See, e.g., FAC, ¶¶ 79, 81, 85, 89–90, 92, 94.)

LEGAL STANDARD

A demurrer tests the legal sufficiency of the pleading. The Court treats properly pleaded material factual allegations as true and also considers matters properly subject to judicial notice. It does not assume the truth of contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The pleading is construed liberally with a view toward substantial justice between the parties. (Code Civ. Proc., § 452.)

A statute-of-limitations defense may be raised by demurrer only where the bar clearly and affirmatively appears on the face of the pleading and matters properly subject to judicial notice. It is insufficient that the action merely might be barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42.)

Fraud ordinarily must be pleaded with specificity. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) That requirement is applied less rigidly to fraudulent concealment because a plaintiff cannot allege precisely when, where, and how a disclosure that never occurred should have been made, particularly where the relevant facts lie principally within the defendant's knowledge. (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384; *Tarmann v. State Farm Mutual Automobile Ins. Co.* (1991) 2 Cal.App.4th 153, 158.)

FIRST AND SECOND CAUSES OF ACTION — SONG-BEVERLY EXPRESS-WARRANTY CLAIMS

The demurrer to the First and Second Causes of Action based on Code of Civil Procedure section 871.21 is **OVERRULED**.

Code of Civil Procedure section 871.21 became effective January 1, 2025. For actions governed by section 871.20, it requires commencement within one year after expiration of the applicable express warranty and, in all events, no later than six years after the vehicle's original delivery, subject to the statutory tolling provisions. (Code Civ. Proc., § 871.21, subs. (a)–(c).)

Section 871.20 applies to specified actions against a manufacturer that has elected to proceed under the new statutory framework, including actions seeking restitution or replacement under Civil Code section 1793.2, subdivisions (b) or (d), based on noncompliance with an applicable express warranty. (Code Civ. Proc., § 871.20, subd. (a).) GM has made the statutory election. Section 871.30 further provides that an electing manufacturer may elect to be governed by the chapter with respect to vehicles sold in 2025 and "in all prior years." (Code Civ. Proc., § 871.30, subd. (a).)

Accordingly, the Court does not adopt Plaintiff's argument that the statutory scheme contains no indication that it applies to vehicles sold before January 1, 2025. Section 871.30, enacted effective April 2, 2025, now expressly addresses prior-year vehicles.

That conclusion, however, does not resolve the separate question whether section 871.21 may constitutionally be applied so as immediately to extinguish an accrued claim that remained timely under the law governing before the new limitations period became effective.

California law recognizes that the Legislature may shorten a limitations period, but a newly shortened period may not constitutionally be applied to extinguish an existing, accrued cause of action without affording the claimant a reasonable opportunity to pursue the claim. (*Niagara Fire Ins. Co. v. Cole* (1965) 235 Cal.App.2d 40, 42–44; see also *Rosefield Packing Co. v. Superior Court* (1935) 4 Cal.2d 120, 122–123.)

In *Niagara*, the Court of Appeal explained that when a newly enacted limitations period would otherwise immediately extinguish an accrued claim, the claimant must be afforded a reasonable period after the new enactment within which to proceed. (*Niagara, supra*, 235 Cal.App.2d at pp. 42–44.)

Here, Plaintiff purchased the vehicle on May 22, 2017, and filed this action on March 27, 2025, less than three months after section 871.21 became effective and before the April 2, 2025 enactment of section 871.30 establishing the present opt-in framework for prior-year vehicles. Defendant seeks to apply the new statute to extinguish claims that Plaintiff alleges accrued and remained actionable under the law existing before January 1, 2025.

On the present pleading, and in the absence of controlling California appellate authority holding that section 871.21 operates to extinguish an accrued and previously viable claim without a reasonable post-enactment opportunity to file suit, the Court declines to sustain the demurrer on that basis. Plaintiff filed approximately 85 days after section 871.21 became effective. Under the principles articulated in *Niagara*, the Court cannot conclude as a matter of law on demurrer that Plaintiff failed to act within a constitutionally reasonable period.

Accordingly, Defendant's demurrer to the First and Second Causes of Action on statute-of-limitations grounds is **OVERRULED**.

THIRD CAUSE OF ACTION — CIVIL CODE SECTION 1793.2(a)(3)

The demurrer to the Third Cause of Action is **OVERRULED**.

Plaintiff's Third Cause of Action alleges a violation of Civil Code section 1793.2, subdivision (a)(3), which requires a manufacturer that provides an express warranty to make sufficient service literature and replacement parts available to authorized service and repair facilities to effect repairs during the express warranty period.

Defendant relies on Code of Civil Procedure section 871.21. That statute, however, applies only to an "action covered by Section 871.20." (Code Civ. Proc., § 871.21, subs. (a)–(b).) Section 871.20, subdivision (a), identifies actions seeking restitution or replacement under Civil Code section 1793.2, subdivisions (b) or (d), section 1793.22, or section 1794, or specified civil penalties based upon noncompliance with an express

warranty. It does not identify a separately pleaded claim under Civil Code section 1793.2, subdivision (a)(3), seeking relief other than restitution or replacement.

Accordingly, Defendant has not established that Code of Civil Procedure section 871.21 bars the Third Cause of Action.

The demurrer to the Third Cause of Action is therefore **OVERRULED**.

FOURTH CAUSE OF ACTION — BREACH OF IMPLIED WARRANTY OF MERCHANTABILITY

The demurrer to the Fourth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

Claims for breach of the implied warranty of merchantability under the Song-Beverly Act are generally governed by the four-year limitations period in Commercial Code section 2725. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1305–1306.)

Commercial Code section 2725 provides that a cause of action for breach of warranty ordinarily accrues when tender of delivery is made, regardless of the buyer’s lack of knowledge of the breach. (Com. Code, § 2725, subds. (1)–(2).)

Mexia does not hold otherwise. It holds that the implied warranty of merchantability can be breached by a latent defect that is undiscoverable at the time of sale. But the breach consists of the existence of the latent defect, not its subsequent discovery. (*Mexia, supra*, 174 Cal.App.4th at pp. 1304–1306.) The court expressly recognized that, under Commercial Code section 2725, the limitations period generally begins upon tender of delivery. (*Id.* at pp. 1305–1306.)

Nor does *Aced v. Hobbs-Sesack Plumbing Co.* (1961) 55 Cal.2d 573 support an indefinite delayed accrual rule under the current Song-Beverly statutory scheme. *Mexia* explains that the statutory duration provision subsequently enacted as Civil Code section 1791.1, subdivision (c), superseded *Aced* to the extent *Aced* recognized a “reasonable,” but indeterminate, prospective duration for an implied warranty. (*Mexia, supra*, 174 Cal.App.4th at pp. 1309 & fn. 10.)

Here, Plaintiff alleges that he purchased and took delivery of the vehicle on or about May 22, 2017. The four-year period under Commercial Code section 2725 therefore expired, absent applicable tolling or estoppel, in May 2021. This action was not filed until March 27, 2025.

Commercial Code section 2725, subdivision (4), preserves otherwise applicable principles of tolling, and California law recognizes that tolling or equitable estoppel may, where adequately pleaded and established, affect an otherwise untimely warranty claim. But a plaintiff relying on fraudulent concealment, equitable tolling, or estoppel to avoid a limitations bar apparent from the face of the pleading must specifically allege facts supporting that theory. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641.)

Although the FAC contains allegations that Defendant concealed its knowledge of the alleged defects, the allegations identified in the present briefing do not sufficiently plead a tolling or estoppel theory explaining

why the limitations period applicable to the implied-warranty claim remained tolled for the period necessary to make this March 2025 filing timely.

Accordingly, Defendant’s demurrer to the Fourth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND** so that Plaintiff may allege, if he can do so in good faith, facts establishing a legally sufficient basis for tolling or estoppel.

FIFTH CAUSE OF ACTION — FRAUDULENT INDUCEMENT BY CONCEALMENT

Defendant argues that the fraudulent-inducement claim is (1) barred by the statute of limitations, (2) barred by the economic-loss rule, and (3) inadequately pleaded. The Court rejects each contention.

Statute of Limitations

The demurrer based on the statute of limitations is **OVERRULED**.

An action for fraud is subject to a three-year limitations period, but the cause of action “is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud.” (Code Civ. Proc., § 338, subd. (d).)

Defendant contends that because the FAC alleges defects and nonconformities manifested during the express-warranty period, Plaintiff necessarily discovered or should have discovered Defendant’s alleged fraudulent concealment more than three years before this action was filed.

The Court disagrees. Knowledge that a vehicle is experiencing mechanical problems is not necessarily equivalent to knowledge that the manufacturer allegedly possessed material pre-sale information concerning a defect and deliberately concealed that information from the purchaser. The FAC alleges that Defendant possessed information concerning the alleged defect from internal testing, consumer complaints, dealership repair information, and other sources not available to Plaintiff, and that Defendant deliberately concealed that information. (See, e.g., FAC, ¶¶ 79, 81, 85, 89–90, 92, 94.)

The FAC does not affirmatively establish on its face that Plaintiff discovered, or reasonably should have discovered, the facts constituting the alleged fraudulent concealment more than three years before the action was filed. The precise point at which Plaintiff had actual or inquiry notice of Defendant’s alleged pre-sale knowledge and concealment presents a factual question that cannot be resolved against Plaintiff on this demurrer.

Accordingly, the demurrer to the Fifth Cause of Action based on the statute of limitations is **OVERRULED**.

Economic-Loss Rule

The fraudulent-inducement claim is not barred by the economic-loss rule.

In *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 840–843, the Court of Appeal held that the economic-loss rule does not bar a claim for fraudulent inducement by concealment where the alleged fraud

induced the plaintiff to enter the transaction and was independent of the manufacturer's subsequent breach of its warranty obligations.

Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1 does not compel a different result. *Rattagan* concerned alleged fraudulent concealment during performance of an existing contractual relationship. The Supreme Court expressly noted the pending *Dhital* and *Kia* matters involving fraudulent inducement by concealment and stated: "We do not address these issues here." (*Rattagan, supra*, at p. 41, fn. 12.)

Here, Plaintiff alleges pre-contractual concealment—that Defendant knew before Plaintiff's purchase that the vehicle contained material engine defects, concealed that information, and thereby induced Plaintiff to purchase the vehicle. Those allegations fall within the fraudulent-inducement theory addressed in *Dhital* rather than the fraudulent-performance theory addressed in *Rattagan*.

Accordingly, the economic-loss rule does not bar the Fifth Cause of Action at the pleading stage.

Sufficiency of the Fraud Allegations

The FAC sufficiently pleads fraudulent inducement by concealment.

The elements of fraudulent concealment are: (1) concealment or suppression of a material fact; (2) a duty to disclose that fact; (3) an intent to defraud by intentionally concealing or suppressing the fact; (4) the plaintiff's lack of knowledge of the fact and resulting action or inaction that would have differed had the fact been disclosed; and (5) resulting damage. (*Hambrick v. Healthcare Partners Medical Group, Inc.* (2015) 238 Cal.App.4th 124, 162.)

Although fraud must ordinarily be pleaded with specificity, less specificity is required in a concealment claim where the relevant facts necessarily lie within the defendant's knowledge. (*Alfaro, supra*, 171 Cal.App.4th at p. 1384.)

Dhital is particularly instructive. There, the plaintiffs alleged that Nissan knew of defects in the vehicle's transmission, possessed exclusive knowledge concerning those defects, intentionally concealed them, intended to induce the plaintiffs' purchase, and that plaintiffs would not have purchased the vehicle had the defects been disclosed. The Court of Appeal held those allegations sufficient at the pleading stage. (*Dhital, supra*, 84 Cal.App.5th at pp. 843–844.)

The allegations here are materially similar. Plaintiff alleges that Defendant had exclusive knowledge of material engine defects through preproduction and postproduction testing, consumer complaints, dealership repair information, and other internal sources; deliberately concealed the defects; intended consumers such as Plaintiff to rely on the absence of disclosure; and that Plaintiff would not have purchased the vehicle had the alleged defects been disclosed. (See, e.g., FAC, ¶¶ 79, 81–83, 88–90, 94, 97, 99, 102.)

Defendant also argues that it had no duty to disclose because Plaintiff purchased the vehicle from a dealership rather than directly from GM. *Dhital* rejected a materially similar argument at the pleading stage where the plaintiffs alleged that they purchased the vehicle from an authorized Nissan dealership, Nissan

backed the vehicle with an express warranty, and the dealership acted as Nissan's authorized intermediary in the sale. (*Dhital, supra*, 84 Cal.App.5th at pp. 843–844.)

Here, Plaintiff alleges that he purchased the vehicle from Defendant's authorized retail dealership and that Defendant provided the applicable manufacturer's warranty. (FAC, ¶¶ 6, 8.) Construing the pleading liberally, those allegations are sufficient at the demurrer stage to allege the transactional relationship necessary for the asserted duty to disclose.

Accordingly, the demurrer to the Fifth Cause of Action for fraudulent inducement by concealment is **OVERRULED**.

DISPOSITION

Defendant General Motors, LLC's Demurrer to Plaintiff's First Amended Complaint is ruled upon as follows:

1. The demurrer to the **First Cause of Action** for breach of warranty under Civil Code section 1793.2, subdivision (d), is **OVERRULED**.
2. The demurrer to the **Second Cause of Action** for breach of warranty under Civil Code section 1793.2, subdivision (b), is **OVERRULED**.
3. The demurrer to the **Third Cause of Action** for breach of warranty under Civil Code section 1793.2, subdivision (a)(3), is **OVERRULED**.
4. The demurrer to the **Fourth Cause of Action** for breach of the implied warranty of merchantability is **SUSTAINED WITH LEAVE TO AMEND**.
5. The demurrer to the **Fifth Cause of Action** for fraudulent inducement by concealment is **OVERRULED**.

Plaintiff may file and serve a Second Amended Complaint within 10 days after notice of entry of the order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Defendant shall prepare and submit a proposed written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide notice of the ruling as required by law.

2:00 PM

LINE: 7

25-CIV-09703

MICHAEL KARPOVICH TEMPLETON VS. TOWN OF ATHERTON, ET AL

MICHAEL KARPOVICH TEMPLETON
TOWN OF ATHERTON

PRO SE
MONA G EBRAHIMI

RESPONDENTS TOWN OF ATHERTON, ELIZABETH LEWIS AND MONA G. EBRAHIMI'S AND REAL PARTY IN INTEREST FAB HOMES 94 PALMERLLC'S JOINT NOTICE OF DEMURRER AND DEMURRER TO PETITION FOR WRIT OF ADMINISTRATIVE MANDAMUS

TENTATIVE RULING:

For the reasons stated below, Respondents Town of Atherton, Elizabeth Lewis, and Mona G. Ebrahimi, and Real Party in Interest Ninety Four Palmer, LLC's Joint Demurrer to Petitioner Michael Karpovich Templeton's Second Amended Petition for Writ of Administrative Mandamus is **SUSTAINED WITH LEAVE TO AMEND**.

PRELIMINARY MATTERS

As a preliminary matter, the demurrer is unopposed. Petitioner filed a request to continue the hearing after the deadline for filing opposition had expired. (See Code Civ. Proc., § 1005, subd. (b) [opposition papers must be filed and served at least nine court days before the hearing].) No proof of service of the continuance request was filed. Moreover, the request is styled as a noticed motion but was noticed for a date and time at which the Court does not hear motions.

A court "lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Accordingly, Petitioner's request for a continuance is **DENIED**.

As an additional preliminary matter, Respondents' electronically filed exhibits have not been electronically bookmarked as required by California Rules of Court, rule 3.1110(f)(4). The Court has nonetheless considered the materials for purposes of this demurrer. Counsel are advised that future noncompliance with the California Rules of Court may subject the responsible party or counsel to sanctions. (See Cal. Rules of Court, rule 2.30.)

BACKGROUND

The Second Amended Petition for Writ of Administrative Mandamus ("SAP") seeks a writ setting aside the Town Council's decision denying Petitioner's appeal and thereby leaving in place the Atherton Planning Commission's written decision granting certain variances and exceptions for a proposed development at 94

Palmer Lane in Atherton. Petitioner seeks an order directing Respondent Town of Atherton (the “Town”) to reverse the Planning Commission’s decision. (July 21, 2026 Second Amended Petition (“SAP”), *passim*.)

Respondents Town of Atherton, Elizabeth Lewis, and Mona G. Ebrahimi, and Real Party in Interest Ninety Four Palmer, LLC (collectively, the “Demurring Parties”) demur to the SAP on several grounds, including that the petition is barred by the applicable 90-day statute of limitations.

The Demurring Parties identify both Government Code section 65009 and Code of Civil Procedure section 1094.6 as potential sources of the applicable limitations period. Government Code section 65009, subdivision (c)(1)(E), is the more specific and controlling statute here.

Section 65009 applies to an action seeking to attack, review, set aside, void, or annul a decision concerning a variance or other matter identified in Government Code sections 65901 and 65903 and requires that the action be commenced and the legislative body served within 90 days after the legislative body’s decision. (Gov. Code, § 65009, subd. (c)(1)(E).)

In *Okasaki v. City of Elk Grove* (2012) 203 Cal.App.4th 1043, 1049–1050, the Court of Appeal held that Government Code section 65009, subdivision (c)(1)(E), rather than the more general provisions of Code of Civil Procedure section 1094.6, governs a judicial challenge to a city’s decision approving a variance. (See also *Honig v. San Francisco Planning Dept.* (2005) 127 Cal.App.4th 520, 526–528 [applying section 65009 to a challenge whose gravamen was the propriety of a zoning variance].)

THE PETITION IS TIME-BARRED ON ITS FACE

The SAP alleges that the Town Council denied Petitioner’s appeal on July 16, 2025. (SAP, pp. 4–5.) Atherton Municipal Code section 17.06.100(E) provides that, in ruling on an appeal, the City Council shall state the basis for its action and that the Council’s action “is final on the date of decision.”

Accordingly, under Government Code section 65009, subdivision (c)(1)(E), Petitioner was required to commence this proceeding and serve the Town within 90 days after the Town Council’s July 16, 2025 decision. The 90-day period expired on October 14, 2025. Petitioner did not file the original Petition until December 15, 2025. (See Dec. 15, 2025 Petition.) The action therefore was untimely when commenced.

The SAP alleges that Petitioner believed the Town Council was required to issue a written decision and that the operative decision date should instead be September 17, 2025, when the minutes of the July 16, 2025 hearing were approved and entered into the Town’s records. (SAP, pp. 4–5.)

The allegations do not establish a later accrual date. Neither Government Code section 65009 nor Atherton Municipal Code section 17.06.100(E) makes finality dependent upon subsequent approval of meeting minutes. To the contrary, the Municipal Code expressly provides that the City Council’s action is final on the date of decision. The later approval of minutes memorializing that action does not, on the allegations of the SAP, constitute a new substantive decision restarting the limitations period.

Nor does Petitioner’s alleged belief that a written decision was required, standing alone, avoid the statutory bar. Equitable estoppel ordinarily requires conduct amounting to a misrepresentation or nondisclosure of material fact and reasonable reliance upon that conduct. A misunderstanding or inaccurate statement of law,

where the pertinent facts and law are equally available to the parties, generally does not support estoppel from asserting a statute-of-limitations defense. (*Millview County Water Dist. v. State Water Resources Control Bd.* (2019) 32 Cal.App.5th 585, 599–601.)

Accordingly, the SAP affirmatively demonstrates on its face that this proceeding was commenced more than 90 days after the Town Council’s July 16, 2025 decision and is therefore barred by Government Code section 65009, subdivision (c)(1)(E).

The demurrer is **SUSTAINED**.

LEAVE TO AMEND

Although Petitioner did not oppose the demurrer or request leave to amend, this appears to be his first opportunity to amend in response to a ruling sustaining a demurrer to his pleading. The issue of leave to amend remains open even when amendment has not been specifically requested. (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 746–747.)

Accordingly, the Court grants **LEAVE TO AMEND** so that Petitioner may allege, if he can do so in good faith, additional facts establishing a legally sufficient basis for tolling, equitable estoppel, or another exception to the applicable limitations period, and may address any other pleading defects raised by the demurrer.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Demurring Parties shall prepare and submit a proposed written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide notice of the ruling as required by law.

2:00 PM

LINJE: 8

25-CIV-09703

MICHAEL KARPOVICH TEMPLETON VS. TOWN OF ATHERTON, ET AL

**MICHAEL KARPOVICH TEMPLETON
TOWN OF ATHERTON**

**PRO SE
MONA G EBRAHIMI**

PETITIONER MICHAEL TEMPLETON'S WRIT OF ADMINISTRATIVE MANDAMUS CCP 1094.5

TENTATIVE RULING:

Considering the court's previous ruling, the court will not rule on this matter at this time.

**UD LAW AND MOTION CALENDAR
THURSDAY, AUGUST 13, 2026**

2:00 PM

LINE: 1

26-UDL-00113

ALVERNAZ PARTNERS, LLC VS. NICOLE GRUNBERG, ET AL

ALVERNAZ PARTNERS, LLC
NICOLE GRUNBERG

TODD L SCHULTZ
PRO SE

DEFENDANT NICOLE GRUNBERG'S DEMURRER TO COMPLAINT FOR UNLAWFUL DETAINER

TENTATIVE RULING:

For the reasons stated below, Defendant Nicole Grunberg's Demurrer to Plaintiff Alvernaz Partners, LLC's Complaint is **OVERRULED**.

BACKGROUND

This residential unlawful detainer action concerns the property located at 936 Easton Avenue, San Bruno, California 94066 (the "Property"). Plaintiff Alvernaz Partners, LLC ("Plaintiff") alleges that it purchased the Property and perfected title on January 6, 2026, and that Defendant Nicole Grunberg ("Defendant") remains in possession of the Property.

The Complaint alleges that, on or about May 1, 2025, Defendant entered into a written lease with Plaintiff's predecessor in interest for a tenancy through April 30, 2026, at monthly rent of \$2,100, payable on the first day of each month. (Complaint, ¶ 6.) Plaintiff further alleges that it served Defendant with a Three-Day Notice to Pay Rent or Quit on January 17, 2026, demanding payment of \$1,726 in rent, that Defendant failed to comply with the Notice, and that the Notice included an election of forfeiture. (Id., ¶ 9 & Exh. 1.)

Defendant demurs pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), arguing principally that the Complaint: (1) fails to attach the written lease or sufficiently plead its operative terms; (2) fails to allege that the lease permits forfeiture for nonpayment of rent; (3) fails to allege facts establishing that \$1,726 was properly due under the lease; (4) fails to allege Plaintiff's right to enforce the lease as successor to the original landlord; and (5) is uncertain.

THE COMPLAINT IS NOT REQUIRED TO ATTACH THE WRITTEN LEASE

An unlawful detainer action is a statutory proceeding, and the pleading requirements are governed by Code of Civil Procedure sections 1161 and 1166. (*De La Vara v. Municipal Court* (1979) 98 Cal.App.3d 638, 641–642.)

Code of Civil Procedure section 1166 generally requires a plaintiff in a residential unlawful detainer action to attach a written lease or rental agreement. (Code Civ. Proc., § 1166, subd. (d)(1)(B).) The statute expressly provides, however, that the written agreement need not be attached when the action is “based solely on subdivision (2) of Section 1161”—i.e., nonpayment of rent. (Id., subd. (d)(1)(B)(iii).)

Here, Plaintiff alleges that this action is based solely on Defendant’s failure to pay rent under Code of Civil Procedure section 1161, subdivision (2). (Complaint, ¶ 6.) Plaintiff therefore was not required to attach the written lease to the Complaint.

Nor does the absence of the written lease require Plaintiff to plead every provision of the agreement. Section 1166 requires the Complaint to set forth the facts upon which Plaintiff seeks recovery and, in an action under section 1161, subdivision (2), to state the amount of rent in default. (Code Civ. Proc., § 1166, subd. (a)(2), (4).) The Complaint alleges a written lease commencing May 1, 2025 and continuing through April 30, 2026, monthly rent of \$2,100 payable on the first day of each month, Defendant’s default in payment of rent, service of the statutory Three-Day Notice to Pay Rent or Quit, the amount of rent demanded, and Defendant’s continued possession. These allegations are sufficient for pleading purposes.

PLAINTIFF WAS NOT REQUIRED TO ALLEGE THAT THE LEASE CONTAINS A FORFEITURE CLAUSE

Defendant also argues that the Complaint is deficient because it does not allege that the written lease itself authorizes forfeiture for nonpayment of rent. The argument is not supported by California law.

Although at common law nonpayment of rent did not authorize forfeiture in the absence of a contractual forfeiture provision, California’s unlawful detainer statutes independently confer upon a lessor the right to declare a forfeiture for nonpayment of rent, even when the lease contains no provision authorizing forfeiture. (*Sexton v. Nelson* (1964) 228 Cal.App.2d 248, 256–257.) That statutory right is exercised through compliance with the requirements governing unlawful detainer for nonpayment of rent. (Ibid.; Code Civ. Proc., § 1161, subd. (2).)

Consistent with that rule, Code of Civil Procedure section 1174, subdivision (a), provides that when an unlawful detainer proceeding is based on default in the payment of rent, the judgment shall declare a forfeiture of the lease or rental agreement if the notice required by section 1161 states the landlord’s election to declare a forfeiture. The critical forfeiture allegation therefore concerns the notice, not the existence of a forfeiture clause in the underlying lease. (See *Briggs v. Electronic Memories & Magnetics Corp.* (1975) 53 Cal.App.3d 900, 905.)

Here, the Complaint expressly alleges that the Three-Day Notice included an election of forfeiture, and the Notice is attached to the Complaint. (Complaint, ¶ 9.d.–e. & Exh. 1.) The Complaint therefore does not fail to state a cause of action merely because it does not allege that the lease itself contains a forfeiture clause.

PLAINTIFF ADEQUATELY ALLEGES ITS RIGHT TO ENFORCE THE TENANCY

Defendant further contends that Plaintiff has not alleged its right to enforce the lease because Plaintiff was not the original landlord.

The Complaint alleges that Defendant entered into the written lease with Plaintiff's predecessor in interest and that Plaintiff subsequently purchased the Property and perfected title on January 6, 2026. (Complaint, ¶ 6.) Code of Civil Procedure section 1161, subdivision (2), expressly recognizes the right of a landlord "or the successor in estate of the landlord" to pursue unlawful detainer following a tenant's default in the payment of rent.

At the pleading stage, Plaintiff's allegations that it acquired title to the Property from Defendant's former landlord and thereby became the landlord's successor in interest are sufficient to allege Plaintiff's right to pursue the present unlawful detainer action.

THE COMPLAINT ADEQUATELY ALLEGES THE AMOUNT OF RENT IN DEFAULT

Defendant also argues that the Complaint does not adequately allege why the amount demanded in the Three-Day Notice—\$1,726—was due.

Code of Civil Procedure section 1166, subdivision (a)(4), requires a complaint based on nonpayment of rent to "state the amount of rent in default." The Complaint does so. It alleges monthly rent of \$2,100 and alleges that \$1,726 in rent was due when the Three-Day Notice was served. (Complaint, ¶¶ 6, 13–14 & Exh. 1.)

Nothing on the face of the Complaint or its attached Notice establishes that the \$1,726 demand was necessarily incorrect. Whether that amount was actually due under the tenancy is a factual matter that cannot be resolved against Plaintiff on demurrer merely because the amount demanded is less than the stated monthly rent. The Complaint sufficiently alleges the amount claimed to have been in default.

THE COMPLAINT IS NOT UNCERTAIN

Finally, the Court does not find the Complaint uncertain within the meaning of Code of Civil Procedure section 430.10, subdivision (f).

Demurrers for uncertainty are disfavored and are sustained only where the pleading is so incomprehensible that the defendant cannot reasonably respond. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

The Complaint identifies the Property, the parties, the nature and duration of the tenancy, the monthly rental obligation, the amount allegedly in default, the Three-Day Notice upon which the action is based, and Plaintiff's asserted basis for the right to possession. Defendant can reasonably determine the allegations against her and respond to them.

DISPOSITION

Accordingly, Defendant Nicole Grunberg's Demurrer to Plaintiff Alvernaz Partners, LLC's Complaint pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), is **OVERRULED**.

Defendant shall file and serve her responsive pleading within the time prescribed by law.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Plaintiff, as the prevailing party on the Demurrer, shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling as required by Code of Civil Procedure section 1019.5.

2:00 PM

LINE: 2

26-UDL-00208

BRIDGE PROPERTY MANAGEMENT COMPANY VS. ARMANDO VEGA PACHECO, ET AL

**BRIDGE PROPERTY MANAGEMENT COMPANY
ARMANDO VEGA PACHECO**

**MERCEDES A. GAVIN
PRO SE**

**PLAINTIFF BRIDGE PROPERTY MANAGEMENT COMPANY’S MOTION FOR TERMINATING SANCTIONS AGAINST
DEFENDANTS ARMANDO VEGA PACHECO, ALEXANDER CHAPARRO RODRIGUEZ AND YENCI LEGUIZAMON**

TENTATIVE RULING:

The unopposed motion is **DENIED WITHOUT PREJUDICE** for lack of proof that Defendants received notice of the correct hearing date.

The motion was filed on June 30, 2026. The proof of service indicates that the motion was served by mail that same day. However, at the time of filing, the hearing date stated in the notice of motion was changed from July 9, 2026, to August 13, 2026. It is therefore unclear whether Defendants were served with the original notice reflecting the July 9, 2026 hearing date or with a revised notice reflecting the August 13, 2026 hearing date.

To date, the Court’s record does not reflect the filing or service of an amended notice of motion advising Defendants of the August 13, 2026 hearing date. Accordingly, the Court cannot determine that Defendants received proper notice of the hearing, and the motion is denied without prejudice.

Posted: 3:00 P.M.
